Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

RESOLUTION NO. 239

RESOLUTION DIRECTING THE MINISTRY OF HEALTH TO IMPLEMENT MUSLIM MINDANAO AUTONOMY (MMA) ACT NO. 245, OTHERWISE KNOWN AS "AN ACT UPGRADING THE TAMPARAN DISTRICT HOSPITAL INTO PROVINCIAL HOSPITAL OF LANAO DEL SUR, APPROPRIATING FUNDS THEREFOR, AND FOR OTHER PURPOSES"

WHEREAS, the Regional Legislative Assembly (RLA) of the defunct Autonomous Region in Muslim Mindanao (ARMM) enacted Muslim Mindanao Autonomy (MMA) Act No. 245, otherwise known as "An Act Upgrading the Tamparan District Hospital into Provincial Hospital of Lanao Del Sur, Appropriating Funds Therefor, and for Other Purposes" on June 11, 2008;

WHEREAS, under this Act, the Tamparan District Hospital located in the Islamic Municipality of Tamparan, Lanao del Sur was upgraded into a Provincial Hospital. Specifically, it provides for the following provisions, to wit:

> *SECTION 1. - The Provincial Hospital in the Province of Lanao del Sur, otherwise known as the Amai Pakpak General Hospital located in Marawi City, Lanao del Sur, has been converted as the Amai Pakpak Medical Center pursuant to Republic Act No. 7943 which is under the supervision and operational control of the National Department of Health.*
>
> *SECTION 2. - The Tamparan District Hospital situated in the Province of Lanao del Sur is hereby upgraded into a Lanao Provincial Hospital.*
>
> *SECTION 3. - The assets and funding of the former Amai Pakpak General Hospital is hereby transferred to the newly-upgraded Tamparan Provincial Hospital.*
>
> *SECTION 4. - The Regional Department of Health (DOH-ARMM) shall formulate the necessary guidelines for the operation of the said Provincial Hospital.*
>
> *SECTION 5. - The Tamparan Provincial Hospital shall be under the direct supervision and control of the DOH-ARMM;*

WHEREAS, Republic Act 11054, otherwise known as "An Act Providing for the Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao, Repealing for the Purpose Republic Act No. 6734," Entitled, "An Act Providing for An Organic Act for the Autonomous Region in Muslim Mindanao," As Amended by Republic Act No. 9054, Entitled, "An Act to Strengthen and Expand the Organic Act for the Autonomous Region in Muslim Mindanao", did not abrogate Acts or Laws enacted by the RLA of the defunct ARMM. As clearly provided in the Final Provisions of the Law, specifically Article XVIII Section 1, "*Subsisting Regional Laws.* - All subsisting laws enacted by the Autonomous Region in Muslim Mindanao Regional Legislative Assembly by virtue of authorities provided under Republic Act No. 6734, as amended by Republic Act No. 9054, shall be deemed valid and in effect, unless inconsistent with this Organic Law or repealed by laws passed by the Parliament.";

WHEREAS, MMA Act No. 245 which upgraded Tamparan District Hospital into a Provincial Hospital is neither inconsistent with the Organic Law nor repealed by a law passed by the Parliament, hence, it is still in force and binding;

Ministry of Health as mandated by Section 4 and Section 5 as above-cited must ensure the implementation of the law:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority, to direct the Ministry of Health to implement Muslim Mindanao Autonomy (MMA) Act No. 245, otherwise known as "An Act Upgrading the Tamparan District Hospital into Provincial Hospital of Lanao Del Sur, Appropriating Funds Therefor, and for Other Purposes".

RESOLVED, FURTHER, to forward the foregoing Resolution to the Ministry of Health and the Ministry of Finance, Budget and Management, for information and appropriate consideration.

ADOPTED, Sha'baan 20, 1443/March 24, 2022.

Certified Correct:

PROF. RAEY B. ANGKAL
Secretary-General

Attested:

ATTY. ALI PANGALIAN M. BALINDONG
Speaker

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